

19STCV23068 19STCV23068

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-06-23

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MOTION FOR RECONSIDERATION IS GRANTED

UPON RECONSIDERATION, THE COURT GRANTS THE REQUEST TO VACATE THE ORDER OF EXCLUSION ON THE BASIS THAT WITH THE TRIAL CONTINUANCE AND DISCLOSURE OF THE VIDEOS, THERE IS NO PREJUDICE TO PLAINTIFF.

THE MOTION IS NOT GRANTED ON THE GROUNDS OF EXCESS OF JURISDICTION. THE MOTION WAS NOT A DISCOVERY SANCTION BUT WAS WITHIN THE COURT'S INHERENT AUTHORITY TO GRANT EXCLUSION OF EVIDENCE IN A MOTION IN LIMINE BASED ON PREJUDICE AND UNFAIRNESS.

DEFENDANT ATTEMPTED TO TAKE ADVANTAGE OF ITS ANSWERS WHICH WERE WRONG ON THE LAW AND HOPE THAT A MOTION TO COMPEL WOULD NOT BE FILED. THIS WAS IMPROPER. THE COURT HAD THE ABILITY TO REMEDY THAT WRONG IN ITS RULING ON A MOTION IN LIMINE.

HOWEVER, HAVING DISCLOSED THE VIDEOS AND THE TRIAL HAVING BEEN CONTINUED TAKES AWAY ANY PREJUDICE IN DEFENDANT'S LEGALLY IMPROPER OBJECTIONS. HAD THE TRIAL NOT BEEN CONTINUED AND HAD THE DEFENDANT NOT PRODUCED THE VIDEOS, THE COURT WOULD NOT VACATE THE RULING.